

23SMCV04203 23SMCV04203

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Case Number: 23SMCV04203 Hearing Date: September 23, 2026 Dept: M

CASE NAME: Daneshrad, et
al., v. Beshara, et al.

CASE NO.: 23SMCV04203

MOTION: Motion
to Enter Judgment (CCP § 664.6)

HEARING DATE: 9/23/2026

Legal
Standard

Code of Civil Procedure ("CCP")
section 664.6 provides:

"If parties to pending
litigation stipulate, in a writing signed by the parties outside the presence
of the court or orally before the court, for settlement of the case, or part
thereof, the court, upon motion, may enter judgment pursuant to the terms of
the settlement. If requested by the
parties, the court may retain jurisdiction over the parties to enforce the
settlement until performance in full of the terms of the settlement."

"Section
664.6 empowers a court to enforce a settlement agreement by way of a summary
procedure if certain requirements are satisfied. In order to take advantage of
the statute's expedited procedure, a party must first establish the agreement

at issue was set forth 'in a writing signed by the parties' or was made orally before the court." (Harris v. Rudin, Richman & Appel (1999) 74 Cal.App.4th 299, 304, citations omitted.) "Because of its summary nature, strict compliance with the requirements of section 664.6 is prerequisite to invoking the power of the court to impose a settlement agreement." (Sully-Miller Contracting Co. v. Gledson/Cashman Construction, Inc. (2002) 103 Cal.App.4th 30, 37.) In ruling on a motion under section 664.6, the trial judge may receive oral testimony, or may determine the motion upon declarations alone. (Corkland v. Boscoe (1984) 156 Cal.App.3d 989, 994.)

"[V]oluntary dismissal of an action or special proceeding terminates the court's jurisdiction over the matter." (Mesa RHF Partners, L.P. v. City of Los Angeles (2019) 33 Cal.App.5th 913, 917.) "If requested by the parties,' however, 'the [trial] court may retain jurisdiction over the parties to enforce [a] settlement until performance in full of the terms of the settlement... A request for the trial court to retain jurisdiction under section 664.6 'must conform to the same three requirements which the Legislature and the courts have deemed necessary for section 664.6 enforcement of the settlement itself... The 'request must be express, not implied from other language, and it must be clear and unambiguous.'" (Id.; see Hagan Engineering, Inc. v. Mills (2003) 115 Cal.App.4th 1004, 1008 ["The settlement language purporting to vest the trial court with retained jurisdiction after the dismissal was a nullity: Subject matter jurisdiction cannot be conferred by consent, waiver or estoppel"].)

Analysis

Plaintiffs Reggie Daneshrad and Joseph Daneshrad move to enter judgment pursuant to CCP section 664.6 in favor of Plaintiffs and against Defendants Edmond Beshara, J & N Realty, Inc., Julius Nagy, and Neal Atkin, in accordance with the terms of the parties' written Settlement Agreement and General Release dated June 26, 2024, in the principal amount of \$85,000.00 together with prejudgment interest at the rate of ten percent (10%) per annum from July 16, 2024 through the date judgment is entered. To the extent that a written order of dismissal signed by the Court has been filed in either action, Plaintiffs alternatively request an order vacating those order(s) to the extent necessary to permit entry of judgment.

Despite

its' label, this motion seeks reconsideration of the prior motion to enforce the same settlement agreement, granted on August 15, 2025. "No application to reconsider any order or for the renewal of a previous motion may be considered by any judge or court unless made according to this section." (CCP § 1008(e)); see *Powell v. County of Orange* (2011) 197 Cal.App.4th 1573, 1577 ["The name of a motion is not controlling, and, regardless of the name, a motion asking the trial court to decide the same matter previously ruled on is a motion for reconsideration under Code of Civil Procedure section 1008."].) Plaintiffs failed to comply with the express requirements of CCP section 1008 by presenting the motion within 10 days of the prior order. Plaintiffs waited approximately one year to file this motion attempting to enter an alternative judgment. Plaintiffs also do not present new or different facts in support of reconsideration. As new evidence, Plaintiffs assert that they threw away the settlement checks they received without opening the mail. (Daneshrad Decl., ¶¶ 6-7, Ex. 1 [Ex. F thereto].) This evidence was available at the time of the original motion. If Plaintiffs find any error in the court's August 15, 2025, reasoning, their remedy was to either move for reconsideration or appeal the decision. Plaintiffs did neither within the statutory periods.

Plaintiff's only new legal argument is that the Court failed to sign a formal dismissal. (CCP § 581d.) Indeed, there is no signed dismissal on record. A minute order not signed by the trial court does not qualify as a judgment of dismissal under CCP section 581d. (*Powell v. County of Orange* (2011) 197 Cal.App.4th 1573, 1578.) However, this omission is correctable. (CCP § 473(d); see, e.g., *Hines v. Lukes* (2008) 167 Cal.App.4th 1174, 1183 [where the court failed to enter a formal judgment, the appellate court amended the order to include a judgment since the effect of the order was to finally determine the rights of the parties in the action].) Thus, the Court would sign a judgment of dismissal effective this date.

The Court lacks continuing jurisdiction over this action upon dismissal. Here, the parties have not stipulated, in writing or orally before the court, for the court to retain jurisdiction over the parties to enforce the settlement until performance in full of the terms of the settlement. (CCP § 664.6(a).) Absent such a stipulation to enforce the settlement after dismissal, the court lacks jurisdiction to enter a new, different judgment.

Even if considered on the merits, the Court would be bound to enter the proposed judgment pursuant to the terms

of the settlement. The settlement agreement does not call for a judgment of \$85,000.00 as Plaintiffs now request. It calls for Defendants to pay \$85,000.00, and for the case to be dismissed upon receipt of the payment. It is undisputed that Plaintiffs received the \$85,000.00 check (but apparently chose to throw the checks away upon receipt). The settlement does not contemplate prejudgment interest in any amount. Thus, entry of Plaintiffs' requested judgment would not reflect the terms of the written settlement agreement and would be error. (See *Greentree Financial Group, Inc. v. Execute Sports, Inc.* (2008) 163 Cal.App.4th 495, 502 [stipulation of judgment memorializing settlement agreement for an unallocated sum of \$20,000 established no basis for additionally awarding obligee its attorney fees incurred in enforcing agreement or prejudgment interest].) Accordingly, the motion is DENIED.